

An Act

ENROLLED SENATE
BILL NO. 1161

By: Hall and Haste of the
Senate

and

Caldwell (Trey) and Kane of
the House

An Act relating to the Oklahoma Health Care Authority; amending Section 70 of Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, which relates to general appropriations; modifying certain date; providing for duties and compensation of administrators and employees; authorizing payment of certain expenses; authorizing certain transfers; requiring certain transfers; authorizing certain early transfer requests; authorizing the exemption of unanticipated federal funds from expenditure and budgetary limitations; providing procedures; requiring certain budget procedures; prohibiting certain budget procedures; providing an effective date; and declaring an emergency.

SUBJECT: Oklahoma Health Care Authority

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 70 of Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

There is hereby appropriated to the Oklahoma Health Care Authority from any monies not otherwise appropriated from the Health Care Enhancement Fund of the State Treasury for the fiscal year ending ~~June 30, 2025~~ June 30, 2027, the sum of Ninety-nine Million

Four Hundred Ninety-four Thousand Four Hundred Fifty Dollars (\$99,494,450.00) or so much thereof as may be necessary to perform the duties imposed upon the Authority by law.

SECTION 2. A. The duties and compensation of employees, not otherwise prescribed by law, necessary to perform the duties imposed upon the Oklahoma Health Care Authority by law shall be set by the Administrator of the Oklahoma Health Care Authority.

B. The Oklahoma Health Care Authority is authorized to:

1. Pay professional expenses of the Administrator of the Authority including dues, licenses, professional memberships, and continuing education classes conducted in this state; and

2. Pay professional expenses of any employee including dues, licenses, professional memberships, continuing medical education classes conducted in this state, and medical malpractice insurance provided he or she is a full-time employee of the Authority in accordance with subsection B of Section 5006 of Title 63 of the Oklahoma Statutes and is utilizing those professional skills in the performance of his or her job duties.

SECTION 3. A. In order to facilitate cash management of federal grant receipts and disbursements, the Oklahoma Health Care Authority is authorized to transfer appropriations, apportionments, fees, fines, and other revenues received in any fund to Funds 200, 245, 340, and 425 as necessary to satisfy program expenditure requirements. Such transfers shall be made at the direction of the Administrator of the Oklahoma Health Care Authority and shall be subject to approval of the Director of the Office of Management and Enterprise Services, except that the cumulative amounts transferred shall not exceed the cumulative amounts of equal monthly allotments of the appropriations from the General Revenue Fund and the Health Care Enhancement Fund.

B. Monies appropriated or collected for the fiscal year ending June 30, 2027, may be transferred to these disbursing funds for the fiscal year ending June 30, 2026, to satisfy encumbrances and obligations of such fiscal year; provided, that monies equal in amount are transferred from appropriations or collections for the fiscal year ending June 30, 2026, to the disbursing fund for the

fiscal year ending June 30, 2027, to satisfy encumbrances and obligations of such fiscal year. All transfer requests shall be in writing to the Director of the Office of Management and Enterprise Services.

C. The Oklahoma Health Care Authority shall maintain records of the inter-year transfers.

SECTION 4. The Administrator of the Oklahoma Health Care Authority may request that receipt and expenditure of unanticipated federal funds awarded after July 1, 2026, be exempt from expenditure limitations and from budgetary limitations.

SECTION 5. The Administrator of the Oklahoma Health Care Authority may request, through the Director of the Office of Management and Enterprise Services, the early transfer by the Oklahoma Tax Commission of tax collections to the General Revenue Fund for the purpose of early allocation to the agency's disbursing funds to alleviate cash flow problems.

SECTION 6. This act shall become effective July 1, 2026.

SECTION 7. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 14th day of April, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 16th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____